

Court No. - 35

Case :- WRIT - C No. - 13316 of 2019

Petitioner :- M/S Parihar Dugdh Avsheetal And Ice Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ghazala Bano Quadri

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bharati Sapru,J.

Hon'ble Vivek Varma,J.

Heard Ms. Ghazala Bano Quadri, learned counsel for the petitioner and Shri Mahboob Ahmad, learned counsel for the Power Corporation.

Learned counsel for the petitioner states that the petitioner has huge arrears towards electricity dues and he is willing to make payment of correct amount.

Learned counsel for the Respondent-Electricity Department, on the other hand, submitted that if the petitioner disputes the electricity bill, he has a remedy by filing his objection before the respondent no.2, Executive Engineer, Poorvanchal Vidyut Vitran Nigam, Fatehpur as per the provisions of Para 6.5 of the Electricity Supply Code, 2005.

In view of above, this petition is disposed of finally leaving it open to the petitioner to file an objection before the respondent no.2 as per Para 6.5 of the Electricity Supply Code, 2005. In case any such objection is filed by the petitioner within a week from today alongwith certified copy of this order, the respondent no.2 shall decide the same in accordance with law expeditiously preferably within a period of two weeks thereafter.

For a period of three weeks from today or till the objection of the petitioner is decided, whichever is earlier, no coercive action shall be taken against him in pursuance of the impugned recovery citation dated 25.07.2018.

A copy of this order may be given to Shri Mahboob Ahmad within next 24 hours for communication and necessary compliance.

Order Date :- 18.4.2019/pks